

HOW TO STOP A RELEASE

Somebody has applied for permission to put an engineered organism outdoors near you. This is where that permission comes from, where it breaks, and what you do first — in any country, by anyone, starting from nothing and spending nothing.

EIGHT DOORS · EVERY ONE OPEN TO A PRIVATE CITIZEN · NONE OF THEM REQUIRES A LAWYER TO WALK THROUGH

They want you to believe this is a decision about science, taken by scientists, in a room you are not qualified to enter. It is not. It is a permit. Permits have numbers, deadlines, signatories and required contents, and when the required contents are missing the permit is vulnerable. Farmers in the Philippines took two crops off their national market this way. A coalition of Burkinabè organisations got a mosquito programme sealed shut. Neither started with money.

What follows is the shape of the thing you are fighting, then eight numbered places to hit it. The numbers match the red badges on the map overleaf. Read the map first if you are the kind of person who needs to see the ground before walking it.

WHAT A “RELEASE” ACTUALLY IS

Somebody wants to put an organism outdoors where it can live, move and reproduce — a maize line, a mosquito, a moth, a tree, a soil bacterium. The legal term is **deliberate release**. The critical fact, which almost nobody outside the industry knows, is that it is *not one decision*. It is four, taken years apart, by the same small group of people.

First the organism lives in a sealed laboratory. Then it goes outdoors onto one fenced plot, under conditions written into a permit: plot size, isolation distance, who monitors, what happens to the residue. Then to more plots, more seasons, looser conditions. Then somebody signs a document saying it may be planted anywhere, indefinitely, without asking again. Depending on where you live, that last signature is called approval, authorisation, registration or deregulation.

After it there is no permit left to oppose. There is contamination, and there is a lawsuit about damages, and those are far worse odds. Everything here is about the years before that signature.

FOUR THINGS THE FILE WILL NOT ADVERTISE

1. The applicant wrote the risk assessment. Not the government, and usually not an independent laboratory. The company or institute seeking the permit produces the dossier; the official science panel reviews the dossier and rarely runs experiments of its own. Once you have seen this, the phrase “the science says” means something much narrower than it sounded.

2. There is usually no monitoring plan. Read the file for what happens after the organism is out there. Who counts it, on what schedule, measuring what, reporting to whom, for how many years, paid for by whom. In a great many approved files the honest answer is: nobody, never, nothing.

3. There is usually no liability mechanism. If the crop crosses into a neighbour's field and costs them an organic certificate or an export contract, no document in the file names who compensates them.

4. Most of it is public. Applicants mark commercial information confidential and everyone assumes that covers the lot. It does not. Environmental risk assessments, release locations, monitoring plans and the decision itself are generally not protectable as trade secrets, and in most systems you can force disclosure by asking in writing.

WHAT YOU ALREADY HAVE

Your government has almost certainly signed the tools you need, and almost certainly has not mentioned it.

The Cartagena Protocol on Biosafety. 173 parties. It requires that an exporting country obtain informed agreement in advance before an engineered organism is sent for release into another country's environment. It states that a lack of scientific certainty is not a reason a government must approve something. It obliges governments to consult the public in these decisions and to publish the outcome. And it expressly permits a government to weigh socio-economic effects — especially on indigenous and local communities — and not only laboratory risk. It also runs the **Biosafety Clearing-House**, a public database at bch.cbd.int where every party is supposed to post its decisions. The United States is not a party. Most of the rest of the world is.

The Aarhus Convention's GMO amendment. Adopted in 2005, and finally in force on 20 April 2025 when Ukraine's ratification pushed it over the line; it now binds 33 parties to build early and effective public participation into release decisions. Aarhus also runs a compliance committee that takes complaints *directly from members of the public* — no lawyer, no fee, no nationality requirement, no government sponsor. In Latin America and the Caribbean the counterpart is the Escazú Agreement, the only environmental treaty on earth with an article specifically obliging states to protect environmental defenders.

The Nagoya-Kuala Lumpur Supplementary Protocol. In force since 2018, and about who pays and who repairs when a release damages biodiversity. Most national files contain no liability mechanism whatsoever, which is precisely why naming this one out loud is useful.

Consent instruments. UNDRIP articles 19 and 32, and ILO Convention 169 articles 6 and 15, require free, prior and informed consent before measures affecting indigenous peoples' lands. The Convention on Biological Diversity's 2018 decision on synthetic biology asks governments to seek that consent from potentially affected indigenous peoples and local communities before releasing organisms carrying engineered gene drives.

WHICH OF THE FOUR SYSTEMS YOU ARE IN

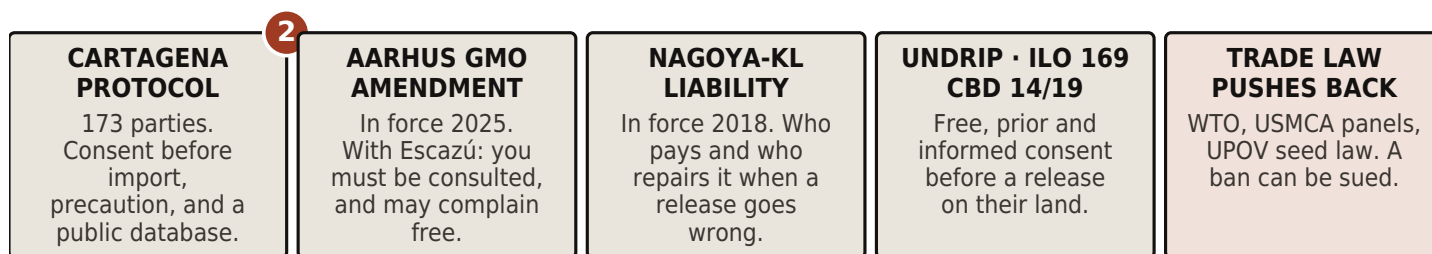
Most countries are a **Cartagena party with a national biosafety act** — an authority, a technical committee, a register, and a comment period written into the statute. **European Union members** run a two-track system: national permits for trials, an EU-wide procedure for market approval, and a standing right for any member state to prohibit cultivation on its own territory. The **United States** is outside the treaty and splits the job between three agencies under a framework built in 1986, with comment taken through public dockets. And a growing group have **deregulated gene editing**, which removes the permit entirely. Establish which one you are in before you write anything.

THE BURDEN IS NOT YOURS

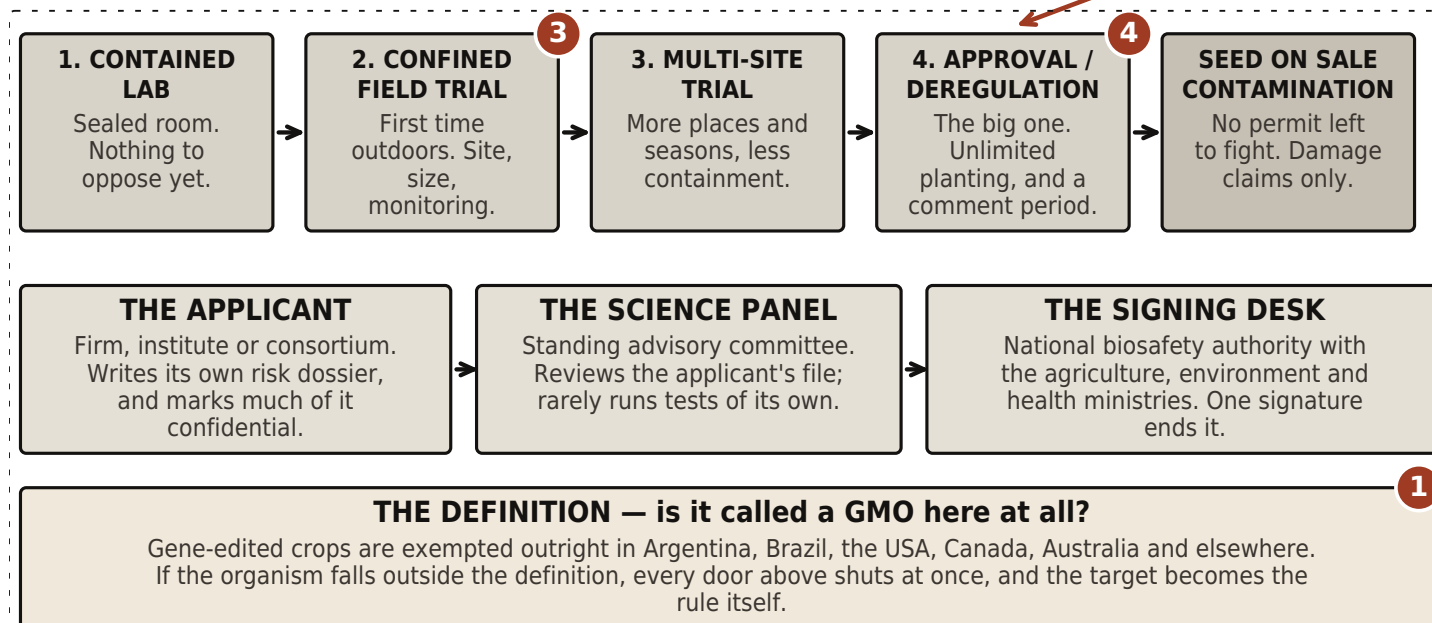
You are not required to prove the organism is dangerous. That is the trap, and it is the burden the applicant would very much like you to pick up. Under the precautionary principle written into the Cartagena Protocol, uncertainty is a reason a government *may* refuse. The burden of showing that a permanent release is safe enough to be permanent belongs to the party asking permission to make it permanent. Make them carry it, in writing, before the deadline, every time.

THE FIELD — EVERYTHING INVOLVED, AND WHERE IT SITS

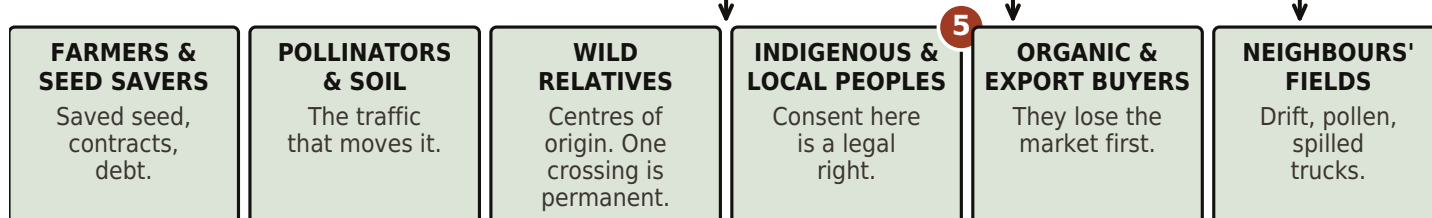
THE LAW ABOVE EVERY COUNTRY — what your own government already signed



THE MACHINE — four separate permits, not one decision



THE GROUND — who carries the result



WHERE YOU PUSH — all pressure runs upward



How to read this. The law your country already signed sits across the top, pressing down; trade law pushes back from the right. The machine in the middle turns an application into a permit in four stages, advised by a panel that reads the applicant's own dossier and signed at a single desk. Underneath sits the definition — whether the organism counts as regulated at all — which governs whether any of the rest applies to it. The ground carries whatever comes out, for as long as it lasts. You, and everyone who can be persuaded to stand with you, are at the bottom, and every route upward is drawn. **The eight red badges are the eight numbered steps that follow.** Find the badge matching where your fight already is, and start there rather than at step one.

1 FIND OUT WHETHER IT IS EVEN CALLED A GMO HERE

Do this before anything else, because it decides whether there is a permit to fight at all. A growing list of countries have written gene-edited organisms out of their biosafety law entirely. Argentina began it in 2015; Brazil, Chile, Colombia, Paraguay and others followed. The United States, Canada and Australia let the developer make the determination itself. The European Union adopted a regulation in July 2026 splitting new genomic techniques into two tiers, applying from 2028, with the implementing detail still being written — an open window, not a closed door.

Do this: write to your national biosafety authority and ask, in one sentence, whether the specific organism is regulated under your biosafety law, and if it is not, under which instrument the exemption sits. Keep the reply. If the answer is that it is unregulated, your target is not a permit. It is that rule, and the fight moves to steps 6 and 8.

THREE KINDS OF RELEASE, THREE DIFFERENT FIGHTS

A plant moves by pollen, seed and machinery, so the permit carries an isolation distance — a number you can check against a map. **An insect or animal** has no meaningful isolation distance and no recapture, so the fight turns on consent and on whether the release is self-limiting or self-sustaining; engineered gene drives, built to spread themselves through a wild population, are the extreme case. **A microbe** applied to soil or seed is unrecoverable and uncountable, gets the thinnest regulatory attention, and makes the monitoring question sharpest.

2 GET THE FILE, AND GET THE NUMBER

Everything downstream depends on holding the actual paperwork. Start at bch.cbd.int and search your country, then find your national biosafety register, which usually sits under the agriculture or environment ministry. In the EU add the EU GMO register and the EFSA application register. In the United States, the APHIS petitions and permits pages and the dockets at regulations.gov. Across much of Africa, Asia and Latin America the national register exists but is badly indexed; the Clearing-House copy is often easier to find than the ministry's own.

Extract and write down: the applicant's legal name; the file or docket number; the organism, the trait, and the **unique identifier** — the standard code such as MON-00810-6 that follows one engineered event through every database on earth, and the single most useful string you will ever type; the release locations; the stage being applied for; and the closing date for comments.

If something is missing, request it in writing, citing your country's access-to-information law and, where it applies, the Aarhus Convention. A refusal in writing is itself evidence later.

IF THERE IS NO REGISTER, OR NO REPLY

This happens constantly, and it is not the end. Go to the Cartagena national focal point for your country, listed on the Clearing-House, and write to them directly. Check the official gazette or state journal, where permits are frequently published even when no database exists. Ask a member of your national or regional parliament to table a written question — the answer is then on the public record and cannot quietly be withdrawn. Ask a journalist. Appeal the refusal under your access-to-information law, because the appeal is usually free and the deadline for the authority to answer is usually short.

SEARCH THE DOSSIER FOR THESE WORDS

Open the PDF and search, in this order: **monitoring · post-release · liability · isolation distance · gene flow · wild relative · coexistence · socio-economic · consultation · consent · herbicide · confidential**. The words that return nothing are your case. Write down which ones they are, because that list becomes the spine of your comment at door 4.

3 HIT THE TRIAL, NOT THE APPROVAL

Instinct says to wait for the big commercial decision. That is backwards. The confined field trial is the least defended stage: fewer lawyers are watching, and the permit is granted with specific physical conditions that are easy to check and hard to satisfy.

Read the trial permit for: isolation distance from other fields of the same crop and from wild relatives; who monitors the site, how often, and what they report; what happens to the plants, insects and residue afterwards; whether an environmental assessment was done at all; and whether neighbouring landholders were notified, which is a requirement people forget to check and applicants forget to meet.

Then go and look at the site. Photograph it with a timestamp. Note what is planted next to it. Non-compliance with a stated permit condition is the cleanest thing in the world to complain about, because it requires no argument about science whatsoever — only a permit, a photograph and a date.

4 PUT IT ON THE RECORD BEFORE THE DEADLINE

This is the only door with a legal clock on it — usually thirty to sixty days — and it is the step people skip. Understand what a comment is: not a petition, not a vote. It creates the administrative record a court reviews later. In most legal systems an objection you did not raise during the comment period is one you cannot raise in court afterwards. No comment, no case.

Send it in writing by a method that produces a receipt. Get others to file separately, each raising a different gap. Ten specific objections beat a thousand identical signatures.

A COMMENT THAT COUNTS — FIVE PARTS

- **Line one.** The file number, the unique identifier and the stage applied for.
- **Who you are.** What connects you to the site: your farm, your hives, your water, your ancestral land, your certification. This is what later gives you standing.
- **One checkable gap.** Not a general objection. "The dossier contains no post-release monitoring plan."
- **The provision it breaches.** Name the article of your national law or of the Cartagena Protocol.
- **The remedy.** "Refuse the permit," or "condition it on X." Ask for something specific enough to be granted.

WHAT HAPPENS AFTER YOU FILE

Comments are not supposed to vanish. In most systems the authority must consider them and give reasons, and the Cartagena Protocol requires the outcome to be made available to the public. So ask, in writing, for three things once the period closes: the **reasoned decision**, the **summary of comments received and how each was addressed**, and the **date the decision takes effect**. That last date usually starts a short appeal clock, and missing it is how winnable cases die. If the decision arrives without reasons, that absence is itself a ground of challenge in most administrative law systems on earth.

5 RAISE CONSENT WHERE CONSENT IS OWED

If indigenous peoples or local communities hold, use or depend on land near the release, consent is not a courtesy that was skipped. It is a binding requirement under UNDRIP, under ILO 169 where ratified, and under the CBD's gene-drive decision. The question to put in writing is narrow and hard to answer: *which body gave free, prior and informed consent, on what date, on the basis of what information, and where is the record?*

Consent belongs to those communities and their own institutions, not to you. Your job is to make sure they hold the file, know the deadline and are actually asked — never to speak in their place.

6 GO LOCAL, WHERE THEY ARE NOT EXPECTING IT

National ministries are lobbied continuously and are unmoved by a hundred letters. Municipal and regional councils are moved by twenty people in a room, and they control things the ministry does not: land use, water, roads, procurement, agricultural extension and their own public land. Regions and municipalities across Europe, Latin America and Africa have declared themselves GMO-free using exactly these powers.

Build the body that carries it: farmers who save seed, beekeepers, organic certifiers, seed-savers' networks, exporters who would lose a market to contamination, the water board, a local scientist, and whoever already convenes people — a union, a co-operative, a parish, a market association. The export argument is the one agriculture ministries actually feel, because it is denominated in money they can count.

Public hearings are worth more than they look. India held a series of them on Bt brinjal and then imposed a moratorium in February 2010 that has never been lifted.

IF THE PERMIT IS ALREADY SIGNED

Arriving late does not end it; it changes the target from permission to consequences.

- **Test and record.** Contamination documented from the first season is worth far more than contamination noticed in year five. Sample, date, photograph, store it off your own premises.
- **Tell the buyers.** Export purchasers, organic certifiers and processors move faster than any ministry, and they move for reasons the ministry cannot argue with.
- **Bank the seed.** Local varieties and wild relatives, collected now, while those populations are still clean.
- **Watch the monitoring.** If the approval imposed conditions, somebody is supposed to be reporting against them. Ask for those reports annually. Their absence is a breach of the approval itself, and a breach can reopen it.
- **Zone it.** Municipal and regional GMO-free declarations still work after national approval, and they are how a national decision gets hollowed out from below.

YOUR FIRST WEEK

- **Day 1.** Search bch.cbd.int and the national register. Write down the unique identifier, applicant, sites, stage and deadline.
- **Day 2.** Request the full dossier, risk assessment, monitoring plan and permit conditions in writing, citing your access-to-information law.
- **Day 3.** Ask the one-sentence question at door 1.
- **Day 4.** Visit the site. Photograph it. Note the neighbours and what they grow.
- **Day 5.** Find the five people who lose something: the seed saver, the beekeeper, the organic exporter, the community with a claim to the land, the local scientist.
- **Day 6.** Draft the comment around one gap. Have someone else draft another around a different gap.
- **Day 7.** Put the deadline, the file number and every document into one shared folder, and give at least two other people access to it, so nothing is lost if you drop out.

7 COURT, BUILT ON WHAT YOU FILED AT DOOR FOUR

Courts do not rule on whether engineering is wise. They rule on whether the decision-maker followed the law. The winning grounds are therefore procedural and evidentiary: the precautionary principle where uncertainty is admitted, absent monitoring, absent liability, absent consent, an assessment written by the applicant, notice that was never given.

The clearest recent demonstration is Philippine. A farmer-scientist network and its allies filed in October 2022; the Supreme Court issued a writ of kalikasan in April 2023 and referred the case to the Court of Appeals; on 17 April 2024 that court revoked the biosafety permits for both Golden Rice and Bt eggplant in a 143-page judgment resting on the precautionary principle and on the absence of any monitoring mechanism. The government appealed and the case is still running — which is the honest version of what winning looks like. It is not one good day in court.

Practically: approach an environmental law clinic or a public-interest firm before a commercial one. The Environmental Law Alliance Worldwide connects local lawyers across more than seventy countries and costs nothing to contact. Where Aarhus applies, its access-to-justice article also obliges parties to keep such cases from being prohibitively expensive — a provision worth citing early, in writing.

8 GO OVER THEIR HEADS

When the national door shuts, the file does not vanish. It becomes evidence somewhere else.

- **The Aarhus Compliance Committee.** Any member of the public may bring a communication against a party, free and without a lawyer. Slow, public, and disliked by governments.
- **The Cartagena machinery.** Your country has a national focal point obliged to post decisions to the Biosafety Clearing-House. Decisions never posted are a finding in themselves.
- **The treaty meetings.** The governments party to the Cartagena Protocol meet every two years to set biosafety rules. The next round is in Yerevan, 19–30 October 2026, with synthetic biology on the agenda. Your country sends a delegation to it. Write to that delegation before it leaves — cheaper than travelling, and it works better.
- **UN special rapporteurs** on toxics, the right to food, the rights of indigenous peoples, and environmental defenders. Submissions are taken online, from anyone.
- **Buyers.** An importer who will not accept a contaminated shipment applies pressure directly to the applicant, which no ministry can absorb for it.

Burkina Faso is the case to study. A national coalition monitoring biotechnology spent years documenting a genetically modified mosquito programme. After a release on 11 August 2025, judicial police searched the insectary at Bobo-Dioulasso and sealed the facilities on 18 August; on 22 August the government suspended all of the project's activities nationwide and ordered the remaining samples destroyed. Years of paperwork preceded that fortnight.

LETTERS THAT ACTUALLY GET ANSWERED

Put the file number and unique identifier in the first line. Ask **one closed question** per letter — one whose answer is a yes, a no, a date or a document — because a letter carrying six questions gets a reply addressing none of them. Cite the provision that obliges them to answer, and state the deadline it gives them. Copy a second body: the environment ministry when you write to agriculture, the ombudsman, the Cartagena focal point. Send it by a method that produces a receipt, keep the receipt, and number your letters, so that the sequence is visible later when you show that three of them went unanswered.

ARGUMENTS THAT SURVIVE CONTACT

Be ruthless here, because the wrong argument does not merely fail. It discredits everyone standing next to you, and officials will use it against your side for years.

THE ONE THAT LOSES

“Eating it will poison you.” The regulator has a thick folder of feeding studies and will produce it. You will be answered in ninety seconds, and everything else you brought gets filed under the same heading. Leave it alone. It is not where this industry is weak.

THE ONES THAT HOLD

- **Irreversibility.** A released organism that reproduces cannot be recalled. No other regulated product has this property and no regulator has a good answer to it.
- **Contamination of neighbours.** Pollen, drift, spilled seed, shared machinery. Somebody loses a certification or a contract, and nothing in the file says who pays.
- **Centres of origin and wild relatives.** Where a crop's wild ancestors still grow, gene flow is not hypothetical, and it is permanent.
- **No monitoring.** Nobody is measuring what happens afterwards. Say it in those words.
- **No liability.** Ask who pays. Keep asking. There is usually no answer in the file.
- **Consent.** Who agreed, on whose behalf, when, and on what information.
- **Who wrote the assessment.** The applicant did.
- **The chemistry attached to it.** A herbicide-tolerant crop means more of one herbicide sprayed, because surviving that spraying is what the trait is for. The spraying is usually assessed separately from the plant, which is a gap you can name.
- **Seed ownership.** Patents and plant-variety law travel with the trait and change what a farmer may lawfully do with a harvest.

EIGHT WAYS PEOPLE LOSE THIS FIGHT

1. Missing the comment deadline, which forfeits the court case nobody realised depended on it. **2.** Arguing food safety, and losing the room for every argument afterwards. **3.** Treating “commercially confidential” as final instead of appealing it. **4.** Letting one person hold every document, and losing all of it when that person burns out. **5.** Speaking for farmers or for an indigenous community rather than making sure they were asked directly. **6.** Signing a confidentiality agreement to attend a “stakeholder briefing,” and thereby losing the right to publish what was said. **7.** Going to national media before the file is in hand, so the story becomes opinion against opinion. **8.** Damaging a trial site, and converting a case about a defective permit into a case about you.

WHERE TO LOOK, AND WHO ANSWERS STRANGERS

Documents: the Biosafety Clearing-House at bch.cbd.int; your national biosafety register; the EU GMO register and the EFSA application register; APHIS and regulations.gov in the United States. **People who will answer an email from someone they have never met:** the Environmental Law Alliance Worldwide, for legal help inside your own country; Third World Network's Biosafety Information Centre, for what is happening across the global South; Testbiotech and GMWatch, for dossier analysis; the African Centre for Biodiversity; and GRAIN and the No Patents on Seeds coalition for the seed-ownership side of it. Ask them early. Nearly every one of these fights has been fought before somewhere, and the people who fought it will tell you which of the eight doors gave way. Add to that list your national organic certifier association, which loses money on contamination and therefore answers quickly, and the Cartagena national focal point for your country, whose contact details sit on the Clearing-House.

IF YOU DO ONLY ONE THING THIS WEEK

Find the closing date for comments and put it where at least two other people can see it. Everything else in this manual can be done late. That one cannot: most courts will only hear objections that were raised during the comment period, so letting the date pass closes the courtroom as well as the file.

WHAT THEY DO BACK

They redefine. The most effective move available to this industry is not winning your argument. It is having the organism reclassified so that no permit is required and no comment period exists. Watch the definition as closely as you watch the application.

They use trade law. A national restriction can be attacked as a trade barrier. Mexico restricted genetically modified maize; a USMCA panel ruled against it in December 2024; Mexico then wrote a planting ban into its own constitution in March 2025. Trade law can beat a decree. It is much worse at beating a constitution, a court judgment, or a thousand municipalities.

They wait you out. These files move over five to fifteen years. Volunteer coalitions dissolve in three. Decide early who keeps the archive, and make sure two unrelated people hold copies of everything.

They separate you from the farmers. If opposition looks like outsiders telling farmers what they may plant, it fails, and it deserves to. The people who own land near the site belong inside the coalition, not underneath it.

ON TACTICS — READ BEFORE YOU ACT

Every method in this manual is lawful, and that is a strategic judgement rather than a squeamish one. Destroying a trial crop converts a fight about a defective permit into a criminal trial about you; hands the applicant the sympathetic story it could not otherwise buy; destroys the physical evidence that permit conditions were breached; and leaves the local farmers who cannot leave town carrying the consequences long after the visitors have gone. If you choose civil disobedience — occupation, blockade, refusal — do it with your eyes open, knowing the charge, with legal support arranged in advance, and never on the assumption that it substitutes for the filings. It does not. The permit is still the thing that decides.